

with the execution thereof. The warrant must substantially recite the facts necessary to the validity of its issuance.” *Id.* at § 7.

The UCEA also limits the time period during which an individual may be detained based on an extradition warrant from the demanding state. “A fugitive not arrested under a warrant from the Governor of this State before the expiration of ninety days from the day of his commitment or the date of the bail shall be discharged.” TEX. CODE CRIM. P. art. 51.07. In addition, the parties agree that an arrested fugitive may be afforded the opportunity to post bond during this 90-day period.

2. Subject Matter Jurisdiction

In addition to contesting that Minnesota can prevail on the merits of any of its claims, Texas presents various threshold arguments challenging the jurisdiction of the Court to consider this lawsuit. As an initial argument, Texas contends that the Court lacks subject matter jurisdiction because “Governor Abbott has not refused [Minnesota’s] extradition demand[,]” and no statute imposes a “set period of time” in which Governor Abbott must sign the rendition warrant. (Texas Resp., Doc. 20, 15, 17) In short, Texas claims that Minnesota’s lawsuit is not ripe.

The doctrine of ripeness concerns “whether a dispute has yet matured to a point that warrants decision.” 13A Wright & Miller, § 3532. “A claim is not ripe for adjudication if it rests upon ‘contingent future events that may not occur as anticipated, or indeed may not occur at all.’” *Texas v. United States*, 523 U.S. 296, 300 (1998) (cleaned up) (quoting *Thomas v. Union Carbide Agric. Products Co.*, 473 U.S. 568, 580–581). Courts consider “the fitness of the issues for judicial decision and the hardship to the parties of withholding court consideration.” *Abbott Laboratories v. Gardner*, 387 U.S. 136, 149 (1967); *see also Placid Oil Co. v. Federal Energy Regul. Comm’n*, 666 F.2d 976, 981 (5th Cir. 1982). Typically, a case is ripe if any remaining questions are purely legal ones; conversely, a case is not ripe if further factual development is required. *Thomas*, 473 U.S. at 581.

Based on the current record, the Court concludes that it lacks subject matter jurisdiction because the case is not ripe for adjudication.

Minnesota's lawsuit necessarily rests on the argument that Governor Abbott has violated the Extradition Clause, the Extradition Act, or the UCEA by having failed to sign a rendition warrant by now. Minnesota cannot premise its causes of action on the allegation that Governor Abbott *may* violate those authorities in the future; it must prove that a violation has already occurred. Otherwise, Minnesota would be impermissibly seeking relief based solely on a premature or speculative allegation about possible future events—i.e., that Governor Abbott will wrongfully deny the request for extradition.

The record before the Court, however, reveals that Governor Abbott has not denied the request for a rendition warrant. Minnesota alleges that Governor Abbott has “refused to sign” and has “with[eld]” the rendition warrant. But the record reflects only that Governor Abbott has neither agreed nor refused to sign the rendition warrant as to Castro. Instead, Governor Abbott has requested that the Texas Secretary of State “investigate [Minnesota’s] demand and report to [the Governor] concerning Mr. Castro’s situation and circumstances and whether he ought to be surrendered.” (Letter from Greg Abbott, Governor of Texas, to Robert Howden, Secretary of State (July 31, 2026), *available at* Legislative Reference Library of Texas, <https://tinyurl.com/mannweac>). The UCEA expressly authorizes Governor Abbott to take this step, *see* TEX. CODE CRIM. P. art. 51.13 § 4, and the Secretary of State has not yet reported back regarding the investigation. As a result, Governor Abbott has not determined whether to sign the rendition warrant.

Minnesota's position would succeed only if the Extradition Clause, Extradition Act, or UCEA required Texas to act on the request for a rendition warrant within a specified time period that has already elapsed. Under those circumstances, Governor Abbott's failure to act within the time period would amount to a violation of the constitutional and statutory authorities and would

present an issue ripe for adjudication. But on this point, neither the Extradition Clause nor either statute at issue contains such a requirement. Minnesota’s argument effectively asks the Court to impose into the Extradition Clause, the Extradition Act, and the UCEA a deadline for a state governor to sign a rendition warrant or decline to do so. The Court is unaware of any authority supporting the creation of a court-imposed deadline under these circumstances.

Minnesota contends that Texas has uncharacteristically and unnecessarily delayed consideration of the issue, presenting evidence that in most cases, Governor Abbott has signed rendition warrants within a few weeks of Minnesota’s request. In contrast, as to Castro, Governor Abbott waited almost two months after receiving Minnesota’s extradition demand before requesting an investigation by the Texas Secretary of State, doing so only after Hennepin County Attorney Moriarty submitted an additional formal request to complete the extradition. And on the eve of Castro being released under Texas law, Governor Abbott contends that he requires more time to vet whether Castro is a fugitive. No party disputes this chronology of events, and the Court accepts that Governor Abbott has considered this particular extradition request for an atypically-long duration. Nevertheless, Minnesota identifies no statutory or constitutional provision requiring Governor Abbott to complete his investigation and decide whether to sign the rendition warrant within a particular time period.

In addition, ample caselaw supports Governor Abbott’s decision to investigate whether Castro is a fugitive for purposes of the Extradition Clause and the statutes. More than one hundred years ago, the Supreme Court explained that when a governor receives a request for the extradition of an accused individual, “[c]ertain facts . . . must appear before the governor has the right to issue his warrant.” *Hyatt v. People of State of New York*, 188 U.S. 691, 709 (1903). In particular, the governor must ensure “that the person demanded is substantially charged with a crime against the laws of the state from whose justice he is alleged to have fled, by an indictment or an affidavit, etc., and that the person demanded is a fugitive from the justice” of the demanding

state. *Id.* In the present case, Governor Abbott expressly requested that the Secretary of State investigate whether Castro is a fugitive, a determination that *Hyatt* and other authorities expressly dictate that a governor not only may, but must consider.⁴

Minnesota raises the concern that Texas’s construction of the Extradition Clause and the related statutes permits an asylum state to thwart the purpose of these authorities by investigating a demand for extradition indefinitely. On this point, the Court does not reach whether circumstances could arise when an asylum state’s prolonged delay in the investigation of an extradition demand would constitute the constructive denial of the demand, so as to create an issue ripe for adjudication. The record in the present matter does not present such circumstances. Governor Abbott requested an investigation by the Texas Secretary of State about 60 days after receiving Minnesota’s extradition demand. The record contains no direct evidence indicating that Governor Abbott made this request for the purpose of delay, or that the investigation will continue for a prolonged period. The threat of an indefinite consideration of Minnesota’s extradition request does not currently exist.

Minnesota also argues that Sheriff Trevino will release Castro on August 27, 2026, and that upon his release, Castro may flee the country, which would significantly hinder Minnesota’s efforts to prosecute its case against him. The Court agrees that Castro’s flight to Mexico would

⁴ The Court has doubts that caselaw supports the construction of “fugitive” that Texas is considering. According to Texas, it is investigating whether, in the context of interstate extradition, a fugitive is a person who volitionally leaves the state in which he is charged. Here, Texas proposes, Castro did not leave Minnesota volitionally, but did so in response to a directive from ICE, his employer. But as the Supreme Court long ago explained, a fugitive is a person who, “having within a state committed that which by its laws constitutes a crime, when he is sought to be subjected to its criminal process to answer for his offense, he has left its jurisdiction, and is found within the territory of another.” *Roberts v. Reilly*, 116 U.S. 80, 97 (1885). Under this rubric, the focus rests not on the accused’s reason for leaving the state, but simply on whether he in fact left. Consistent with this broad construction of “fugitive,” cases that have concluded that an individual was not a fugitive all involved persons who were not within the state demanding extradition when the alleged offense occurred. *See, e.g., Hyatt v. New York*, 188 U.S. 691 (1903); *Fowler v. Ross*, 196 F.2d 25, 35 (D.C. Cir. 1952); *Moncrief v. Anderson*, 342 F.2d 902 (D.C. Cir. 1964). And in one case, a circuit court concluded that a prisoner transferred by state custodial authorities from Kansas to Wyoming became a fugitive from Kansas for purposes of extradition. *Gee v. Kansas*, 912 F.2d 414, 419 (10th Cir. 1990) (“Once petitioner *was moved* outside Wyoming State boundaries, he became a fugitive from justice within the meaning of 18 U.S.C. § 3182.”) (emphasis added). The transferred individual in *Gee* made no more of a volitional act to leave Kansas than Castro did to leave Minnesota. But the Tenth Circuit still concluded that the accused was a fugitive for purposes of interstate extradition.